



Marine Circular Nr. 06/2024, 20/12/2024

Subject: “Mandatory Financial Security and Voluntary Declaration of Maritime Labour Compliance (DMLC) Part I for Vessels Below 500 GT”

Ref.: (a) Maritime Labour Convention, 2006 as amended (MLC 2006), Regulation 2.5, Standard A2.5.2, and Regulation 4.2.
(b) G-B I.S.R. Code of Operation.

To: Shipowners/Operators, Legal Representatives of G-B I.S.R. flagged Vessels, Deputy Registrars Authorized Offices, Recognized Organizations (ROs), relevant stakeholders and Seafarers on board G-B flagged vessels.

Summary: The current MAR CIR establishes that vessels below 500 GT falling within the scope of MLC 2006, as amended, must comply with mandatory financial security provisions in line with MLC 2006, as amended (Regulations 2.5 and 4.2), particularly for seafarer abandonment and contractual claims. Additionally, it introduces a new shipowner declaration format and encourages voluntary adoption of a DMLC Part I to strengthen compliance and facilitate inspections.

1. Purpose

1.1 The purpose of this Marine Circular is to introduce mandatory financial security requirements for all vessels below 500 GT flying the flag of Guinea-Bissau, and falling within the scope of MLC 2006, as amended. These requirements are in accordance with:

- a. Regulation 2.5, Standard A2.5.2 of the MLC 2006, which mandates financial security for repatriation and support of abandoned seafarers.
- b. Regulation 4.2 of the MLC 2006, which requires financial security to cover shipowners' liability for seafarers' sickness, injury, or death during their employment.

1.2 The circular also encourages shipowners of vessels less than 500 g.t. to voluntarily apply for a Declaration of Maritime Labour Compliance (DMLC) Part I, as it enhances the credibility of compliance with MLC 2006 and mitigates potential issues during Port State Control inspections.

2. Application

2.1 Financial Security Obligations: Effective immediately upon issuance of the current MAR CIR, all vessels below 500 GT, including those registered with G-B I.S.R. before the issuance of this MAR CIR, must comply with financial security provisions as per Regulation 2.5, Standard A2.5.2, and Regulation 4.2 of the MLC 2006. The financial security system must include certificates or other documentary evidence issued by approved providers, such as P&I Clubs or recognized insurers (see G-B I.S.R. Approved P&I Clubs and Insurers at <https://gbisr.com/approved-pi-clubs-insurers/>).

2.2. The financial security must specifically address the following:

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- a. Abandonment: Ensuring seafarers are provided with necessary support, including wages, food, medical care, and repatriation, in case of abandonment (Standard A2.5.2).
- b. Contractual Claims: Covering liabilities for death or long-term disability as outlined under Standard A4.2.1.

3. Voluntary DMLC Part I:

- 3.1.** While vessels below 500 GT are not required by MLC 2006 to carry a Maritime Labour Certificate or associated DMLC, this Administration strongly recommends obtaining these documents voluntarily.
- 3.2.** The DMLC Part I, issued by this Administration, outlines the specific measures in national law implementing MLC 2006. It serves as a reference during inspections and certification processes.

4. Mandatory Financial Security Requirements

4.1 Coverage for Abandoned Seafarers: In compliance with Regulation 2.5, Standard A2.5.2, the financial security must ensure seafarers are entitled to adequate assistance in the event of abandonment. This includes unpaid wages for up to four months, food, accommodation, and repatriation to their home country or place of hire. The financial security provider must issue a certificate or other documentary proof (i.e. "Blue Cards"), which is to be carried onboard and made available to inspectors upon request.

4.2 Coverage for Contractual Claims: MLC Regulation 4.2 requires financial security to cover shipowners' liabilities for compensation related to seafarers' sickness, injury, or death arising from their employment. Certificates must confirm coverage for the duration of the seafarer's employment agreement and meet the specific standards outlined in the MLC 2006.

4.3. Verification and Reporting: Shipowners are required to submit copies of the financial security certificates to this Administration. These certificates will be verified for compliance with the MLC 2006 before confirmation of receipt is issued.

5. New Obligatory Declaration

5.1. Shipowners are required to sign a declaration assuming responsibility for meeting all obligations under the MLC 2006, as amended, including those related to financial security. The declaration must include the shipowner's details, the list of applicable ships, and an agreement to notify the Administration of any changes in the shipowner's status.

5.2 This signed declaration must be submitted as part of the application for financial security documentation and/or a voluntary DMLC Part I.

6. Failure to Comply

6.1 Failure to meet the financial security requirements may result in administrative measures, including restrictions on vessel movements, registry suspension, or cancellation (withdrawal of flag registration), in accordance with the G-B I.S.R. Code of Operation and MLC 2006 enforcement provisions.



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7. Effective Date

7.1. This Marine Circular is effective immediately as of the date of issuance.

8. Contact Information

8.1. For inquiries, please contact: G-B I.S.R – Operation Department, (Email: ops@gbi-lb.org Tel: +30 210 4537950, +30 210 4537194.).

For the Guinea-Bissau International Ships Registry

Authorized Signatory:

Office of the General Ships Registrar



Annex: Declaration of Shipowner Assuming MLC Responsibilities (p.2.)



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ILO MLC 2006 Declaration of Shipowner Assuming MLC Responsibilities for Vessels Registered with G-B I.S.R.

In accordance with Article II of the Maritime Labour Convention, 2006, "Shipowner" refers to the owner of the ship or another organization or person (such as a manager, agent, or bareboat charterer) who assumes the responsibility for the operation of the ship from the owner and agrees to take over the duties and responsibilities imposed on shipowners by the Convention.

Shipowner Declaration:

I, the undersigned, confirm the following:

Name of the Company*: _____

Address*: _____

Name of Responsible Person*: _____

Telephone*: _____

E-mail*: _____

Fax (optional): _____

The Shipowner is responsible for ensuring compliance with all MLC 2006 requirements for the following vessel registered with G-B I.S.R.:

- Ship's Name*: _____
- IMO Number (if any): _____
- Official Number*: _____

(*) Compulsory entry.

Remarks: The undersigned agrees to notify the Administration in writing of any changes to the shipowner's status.

Date: _____

Registered Owner: _____ Signature: _____